



Inverness Harbour Order Confirmation Act 1976

CHAPTER iv

ARRANGEMENT OF SECTIONS

Section

1. Confirmation of Order in schedule.
2. Short title.

SCHEDULE

INVERNESS HARBOUR

1. Short title and citation.
2. Amendment of Order of 1911.
3. Costs of Order.

SCHEDULE—Amendments and modifications of the
Inverness Harbour Order 1911.

THE UNIVERSITY OF CHICAGO

LIBRARY

500 EAST HALL

CHICAGO, ILL.

60607

1968

1969

1970

1971

1972

1973

1974

1975

1976

1977

1978

1979

1980

1981

1982

1983

ELIZABETH II



1976 CHAPTER iv

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936, relating to
Inverness Harbour. [4th March 1976]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52.
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,
by and with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Inverness Harbour Order
Confirmation Act 1976. Short title.

SCHEDULE

INVERNESS HARBOUR

Provisional Order to make provision with respect to the qualification, appointment and election of the Trustees of the Harbour of Inverness consequent upon the coming into operation of the Local Government (Scotland) Act 1973; to confer powers on the Highland Regional Council and the Inverness District Council with regard thereto; and for other purposes.

1911 c. cxxi.
1953 c. ii.

Whereas by the Inverness Harbour Order 1911 as amended by the Inverness Harbour Order 1953 the Trustees of the Harbour of Inverness comprise fifteen members, namely:— the Provost of the Royal Burgh of Inverness (hereinafter referred to as “the burgh”), seven members (called “Council Representatives”) appointed by the Provost, Magistrates and Councillors of the burgh, three members (called “Municipal Trustees”) elected triennially on the same day and in the manner as nearly as may be as the election of town councillors for the burgh and four members (called “Traders’ Trustees”) elected triennially in November:

And whereas persons whose names appeared on the electoral roll for the burgh were qualified to be elected as Municipal Trustees or Traders’ Trustees:

1973 c. 65.

And whereas on the coming into operation of the Local Government (Scotland) Act 1973 and by virtue of section 154 of that Act the right of the burgh to appoint seven members of the town council as Trustees of the Harbour of Inverness passed to the Highland Regional Council and persons whose names appear on the register of electors of the Highland Region became qualified to be elected as Municipal Trustees and Traders’ Trustees:

And whereas in order to preserve the local interest of trustees in the management and conduct of the business and affairs of the port and harbour of Inverness it is expedient that the provisions of the Inverness Harbour Order 1911 relating to the qualification, appointment and election of trustees should be amended as in this Order provided:

And whereas it is expedient that the other provisions contained in this Order should be enacted:

1936 c. 52.

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders, as follows:—

Short title and
citation.

1. This Order may be cited as the Inverness Harbour Order 1976 and the Inverness Harbour Acts 1808 to 1953 and this Order may be cited together as the Inverness Harbour Acts 1808 to 1976.

2. As from the commencement of this Order the Inverness Harbour Order 1911 as amended by the Inverness Harbour Order 1953 shall have effect subject to the amendments and modifications set out in the Schedule to this Order.

Amendment of
Order of 1911.
1911 c. cxxi.
1953 c. ii.

3. The costs, charges and expenses of and incidental to the preparing, obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Trustees out of the revenues of the harbour.

Costs of Order.

SCHEDULE

AMENDMENTS AND MODIFICATIONS OF THE INVERNESS HARBOUR
ORDER 1911

1. In section 3 (Interpretation) the definitions of "The Burgh", "The Corporation" and "The Town Hall" shall cease to have effect and the said section shall be read and have effect as if the following definitions were inserted therein:—

"district council" means the Inverness District Council;

"district" means the Inverness District;

"regional council" means the Highland Regional Council.

2. In section 5 (Harbour Trustees Incorporated) for the words "Provost of the Burgh for the time being and seven other members of the Town Council of the Burgh together with seven other persons to be elected as hereinafter provided. The said Provost members of the Town Council and persons" there shall be substituted the words "chairman for the time being of the district council, the chairman and vice-chairman for the time being of the Transport, Engineering and Basic Services Committee of the regional council and five persons to be appointed by the regional council as hereinafter provided together with seven other persons to be elected as hereinafter provided. The said 15 persons".

3. For section 6 (Trustees, how chosen) there shall be substituted the following section:—

"Trustees,
how chosen.

6. The Trustees shall be appointed and elected as follows:—

- (1) The chairman of the district council shall on his election as such become ex officio a trustee and shall remain a trustee while he holds the office of chairman.
- (2) The chairman and vice-chairman of the Transport, Engineering and Basic Services Committee of the regional council shall on their appointment as such respectively become ex officio trustees and shall remain trustees while holding the office of chairman and vice-chairman of the said committee.
- (3) (a) Five other persons (hereinafter called 'council representatives') appointed by the regional council from among persons who are members of the regional council and members of the district council, or, if and to the extent that there shall be less than five persons so qualified for appointment—
 - (i) two from among persons who are members of the regional council for electoral divisions within the boundaries of Inverness district; and

SCH.
—cont.

(ii) three from among persons who are members of the district council after consultation by the regional council with the district council.

- (b) Appointments of council representatives shall be made by the regional council at the first meeting held after the coming into operation of the *Inverness Harbour Order 1976*. The council representatives shall retire from office on the expiration of their respective terms of office as members of the regional or district council whichever shall first occur; and as soon as may be thereafter the regional council shall appoint council representatives as aforesaid to fill up the places of the retiring council representatives:

Provided always that a council representative retiring at the expiration of his term of office as a member of the regional or district council shall be eligible for re-appointment as a council representative if he is again elected a member of that council:

Provided also that if a council representative ceases from any cause to be a member of the district council he shall thereupon cease to be one of the council representatives and the casual vacancy thereby created shall be filled up by the regional council in the manner hereinafter provided.

- (4) Four persons hereinafter called 'Traders' Trustees' shall be elected by persons qualified as provided in section 8 of this Order.
- (5) Three persons hereinafter called 'Municipal Trustees' shall be elected by the persons qualified as provided in section 21 of this Order.
- (6) The election of the Traders' Trustees shall take place upon the third Monday of November in every third year after 1975.
- (7) On the third Monday of November in every third year after 1975 the four Traders' Trustees shall go out of office but shall if duly qualified be eligible for re-election.
- (8) Any appointment or election of trustees made in accordance with the terms of this Order between the date of the coming into operation of the *Local Government (Scotland) Act 1973* and the date of the commencement of the *Inverness Harbour Order 1976* shall be deemed to have been validly made as if at the time of the said appointment or election the said Order of 1976 had been in force."

SCH.
—cont.

4. In section 7 (Qualification of Traders' and Municipal Trustees) for the words "Town Councillors for the Burgh" there shall be substituted the words "district councillors for the district".

5. In section 8 (Qualification of Traders' Trustees Electors) and in section 13 (Qualification of Joint Owners and Partners and Companies) for the words "municipal boundaries of the Burgh" wherever they occur there shall be substituted the words "boundaries of the wards of the district mentioned in section 21 of this Order".

6. In section 17 (Mode of conducting Election of Traders' Trustees)—

(a) In subsection (1) for the words "Town Hall" there shall be substituted the words "offices of the district council";

(b) In subsection (2) for the words "Provost of the Burgh" there shall be substituted the words "chairman of the district council".

7. For section 21 (Qualification of Municipal Trustees electors) there shall be substituted the following section:—

"Qualification
of Municipal
Trustees
electors.

21. Every person whose name appears on the register of electors of the following wards of the district (or of any wards of the district that may be substituted therefor), namely:—

First or Merkinch
Second or Carse
Third or Muirtown
Fourth or Dalneigh
Fifth or Columba
Sixth or Ballifeary
Seventh or Park
Eighth or Central
Ninth or Crown
Tenth or Culcabock
Eleventh or St. Stephens
Twelfth or Hilton
Thirteenth or Drummond
Fourteenth or Lochardil
Fifteenth or Clava
Sixteenth or Balloan

shall be qualified to vote in the election of Municipal Trustees."

8. For section 22 (Election of Municipal Trustees) there shall be substituted the following section:—

"Election of
Municipal
Trustees.

22.—(1) The Municipal Trustees in office at the commencement of the Inverness Harbour Order 1976 shall continue to hold office until the next date when the election of district councillors is held and thereafter the election of municipal trustees shall take place on the same day and as nearly as may be in the same manner in the same place and with the same returning officer as the election of district councillors for the district.

SCH.
—cont.

(2) The expenditure incurred in the election of municipal trustees as ascertained and apportioned by agreement between the district council and the trustees or failing agreement by the Sheriff shall be a charge upon the revenues of the harbour and shall be paid to the district council by the trustees.

(3) The term of office of municipal trustees shall be the same as the term of office of the council representatives.

(4) The enactments regulating the election of district councillors shall with necessary variations and subject to the provisions of this Order extend and apply to the election of municipal trustees.

(5) It shall be the duty of the district council to make due provision for the election of municipal trustees.”.

9. In section 24 (Occasional Vacancies) for subsection (1) thereof there shall be substituted the following subsection, namely:—

“(1) In the case of a council representative the Clerk shall intimate the vacancy to the regional council who shall as soon as may be thereafter appoint a qualified person to fill the vacancy in accordance with the provisions of section 6 of this Order and the council representative so appointed shall continue in office until the expiration of his term of office as a member of the regional council or the district council as the case may be.”

10. In section 36 (Adjournment of Meetings) for the word “ Burgh ” there shall be substituted the word “ district ”.

PRINTED IN ENGLAND BY OYEZ PRESS LIMITED
FOR HAROLD GLOVER

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

22p net

ISBN 0 10 510476 0